



United States
Attorney's Office
Western District of New York



WNY Medical agrees to pay \$250,000 to resolve allegations of improper Medicare billing for chronic care management services



Wednesday, February 19, 2025

For Immediate Release

U.S. Attorney's Office, Western District of
New York

BUFFALO, N.Y. – Acting U.S. Attorney Joel L. Violanti announced today that Western New York Medical P.C. has agreed to pay \$251,477 to resolve False Claims Act allegations that it submitted false claims to federal health care programs related to billing for chronic care management services.

Assistant U.S. Attorney David M. Coriell, who handled the case, stated that WNY Medical is a health care provider with locations in Erie and Niagara Counties. The Government alleges that between January 1, 2020, and March 31, 2023, WNY Medical submitted claims to Medicare for Chronic Care Management encounters using current procedural terminology, which requires that clinical staff provide at least 20 minutes of services per month. However, for a portion of these encounters, WNY Medical failed to provide at least 20 minutes of clinical staff time during the month in which WNY Medical billed Medicare for the services.

"The financial integrity of the Medicare program depends on providers accurately and truthfully reporting the services that they are providing," said Acting U.S. Attorney Violanti. "This office is committed protecting the integrity of the Medicare program by holding providers accountable when they seek payments for which they are not entitled."

The resolution of this matter was the result of a coordinated effort between the U.S. Attorney's Office for the Western District of New York and the U.S. Department of Health and Human Services Office of Inspector General.

The claims resolved by the settlement are allegations only and there has been no determination of liability.

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